that a plaintiff does not need knowledge of all the constituent elements of a claim to discover that claim.

29. Discoverability under limitations statutes incorporates the common law standard that the limitation period begins to run when the material facts on which the claim is based have been discovered or ought to have been discovered by the claimant exercising "reasonable diligence".[18] The test is met if the moving party can show that the claimant either had actual knowledge of the material facts, or that the claimant ought to have discovered those material facts by exercising reasonable diligence. Direct and circumstantial evidence may be used to demonstrate the requisite level of knowledge.[19] Even a suspicion alone may be sufficient to trigger the claimant's exercise of due diligence.[20] "Perfect knowledge" or certainty that the defendant is liable for a claim is not required.[21]

30. The Ontario Court of Appeal discussed what is necessary for the claimant to know for the purposes of limitations in *Gordon Dunk Farms Limited v HFH Inc*,[22] as follows:

> 34 **A plaintiff need not know the exact act or omission by the defendant that caused the loss in order to start the limitation period running.** What it needs to know is that an incident occurred that resulted in a loss (s. 5(1)(a)(i)), that the defendant did or failed to do something to cause that loss (s. 5(1)(a)(ii) and (iii)), and that, having regard to the nature of the injury, loss, or damage, a court proceeding is an appropriate means to seek a remedy (s. 5(1)(a)(iv)).
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> 35 The damages and injury caused by a car accident provide an instructive example. The defendant's car slams into the plaintiff's car. The plaintiff knows the defendant was driving, but may not know whether the defendant fell asleep at the wheel, neglected to get the brakes of the car serviced, was distracted by a phone call, was drunk, or was just careless. The plaintiff will plead all of those allegations as part of its negligence claim. In discovery, the true facts will likely be disclosed. It is also possible that the actual cause or causes of the accident may not be revealed until trial. **But the action must be commenced within two years of when the**

18 *Grant*, para 29.
19 *Grant*, para 44.
20 *Ibid*.
21 *Grant*, para 46.
22 *Gordon Dunk Farms Limited v HFH Inc*, 2021 ONCA 681 [*Gordon*].